

Court No. - 3

Case :- WRIT - C No. - 26260 of 2021

Petitioner :- M/S Paras Agro

Respondent :- State Of U.P. And 6 Others

Counsel for Petitioner :- Jitendra Kumar Ravat

Counsel for Respondent :- C.S.C.,Arti Raje

Hon'ble Naheed Ara Moonis,J.

Hon'ble Saumitra Dayal Singh,J.

As prayed, put up as fresh on 12 November 2021 by way of last opportunity.

Order Date :- 22.10.2021

Faraz

Court No. - 21

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Respondent :- State Of U.P. And 6 Others

Counsel for Petitioner :- Jitendra Kumar Ravat

Counsel for Respondent :- C.S.C.,Arti Raje

Hon'ble Naheed Ara Moonis,J.

Hon'ble Saumitra Dayal Singh,J.

Heard Shri Jitendra Kumar Ravat, learned counsel for the petitioner and Ms. Arti Raje, learned counsel for the respondent.

Learned counsel for the petitioner submits that the entire proceedings are mala fide and without any just basis. A petty dispute had taken place between the petitioner who runs a restaurant and certain officials of the Distribution Company. It has resulted in the proceedings. It has been further submitted, the regular electricity bills have been paid by the petitioner, however, the petitioner has been visited with a demand of Rs. 8,74,908/- on a false allegation of theft of electricity. That allegation of theft was found to be untrue. The police submitted a closure report. That fact of closure report has been vehemently disputed by the learned counsel for the Distribution Corporation.

At the same time, it cannot be established as to when the provisional demand dated 31.12.2019 was served upon the petitioner. In fact, it has been submitted that the petitioner had not filed any objection to the provisional demand and therefore the same has attained finality.

Under Section 126 of the Electricity Act, 2003 read with the U.P. Electricity Supply Code, 2005, it is mandatory on part of the Distribution Corporation to serve a provisional demand on the consumer as may allow it an opportunity to file objection. If such objection is filed within time, the Distribution Corporation would remain obligated to first adjudicate the same before seeking recovery of its demand. Only in terms of the decision that may be passed upon the objections filed, the recoveries may arise.

In the facts of the present case as noted above, since the date of service of the provisional demand is not established, we do not see how the recoveries have arisen against the petitioner, prematurely.

In such facts, no useful purpose would be served in keeping the

petition pending or calling for a counter affidavit, in view of the order proposed to be passed.

Accordingly, the writ petition is ***disposed of*** with the following directions:

(i) the petitioner may file a copy of this order before the respondent no. 6 within a period of two weeks from today. Thereupon, respondent no. 6 shall make available to the petitioner all adverse material that is being relied in support of the recovery citation dated 04.01.2021 (annexed as Annexure No. 8 to the petition);

(ii) upon being thus confronted with the adverse material, the petitioner shall have a right to file a detailed objection within a further period of two weeks therefrom annexing therewith all material as the petitioner may seek to rely on;

(iii) upon receipt of such objection, the said respondent no. 6 shall fix a date for hearing in the matter within a period of two weeks therefrom and pass appropriate and reasoned order, strictly in accordance with law, after hearing the parties within a period of one month therefrom.

For a period of three months from today or till disposal of the aforesaid objection, whichever is earlier, no coercive measure shall be adopted against the petitioner, subject to his complying with the terms of this order.

All further recovery shall abide by the decision to be made by the respondent no. 6.

Order Date :- 17.11.2021

Saurabh